

		<i>Berry v. Society of St. Pius X</i> (1999) 69 Cal. App. 4th 354, 364; <i>Mehr v. Superior Court</i> (1983) 139 Cal. App. 3d 1044, 1047-50; <i>Asuncion v. Superior Court</i> (1980) 108 Cal. App. 3d 141, 147.) Defendant cites to <i>Coyne v. De Leo</i> (2018) 26 Cal.App.5th 801, 818-819, to support his argument that title of the tenant can be adjudicated in an unlawful detainer proceeding, thus, it need not be consolidated with this case. However, as stated in <i>Martin-Bragg</i>: “When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions. If it does neither and instead tries the issue of title under the summary procedures that constrain unlawful detainer proceedings, the parties' right to a full trial of the issue of title may be unfairly expedited and limited. If complex issues of title are tried in the unlawful detainer proceeding, the proceeding loses its summary character; defects in the plaintiff's title ‘are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment.’ ” (<i>Martin-Bragg, supra</i>, 219 Cal. App. 4th 367, 385.) Here, the issues of title are clearly complicated with Defendant asserting the certain text messages were faked and the doctrine of unclean hands. Additionally, Plaintiff claims title through an oral agreement. Resolving all these issues in a summary proceeding would be prejudicial against Plaintiff. Defendant concedes in his opposition the issue of title is too complex for an unlawful detainer's summary proceeding. (Opp., p. 9 [“Consolidating the two would not simplify anything; it would import the very complexity that the summary UD procedure exists to keep out”].) However, contrary to Defendant's assertion, the complexity of an issue of title does not allow the party to proceed with an unlawful detainer action before the question of title is determined.
6.	SANDOVAL VS. LOS ALAMITOS UNIFIED SCHOOL DISTRICT 2022-01294532	MOTION FOR DISCOVERY PROTECTIVE ORDERS Plaintiffs' Motion for Discovery Protective Order and Extension of Time to Respond is DENIED in part and GRANTED in part. Plaintiffs Emma Sandoval, through her guardian ad litem Rachel Sandoval, and Julia Johnson, through her guardian ad litem Suzanne Johnson, move for a protective order limiting and/or narrowing the first set of written discovery requests propounded by Defendant Pali Institute Inc., and for an order that Plaintiffs may produce certain information designated as “Confidential – Attorneys' Eyes Only.” <u>Legal Standard</u> Code of Civil Procedure Section 2017.020(a) provides: “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the

likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person.” The relevant discovery statutes (which are nearly identical) also provide that “[t]he court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., §§ 2025.420(b), 2030.090(b)(6), 2031.060(b)(5), 2033.080(b)(4).)

The burden is on the party seeking the protective order to show “good cause” for whatever order is sought. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; *Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1145.) “The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order.” (*Goodman v. Citizens Life & Cas. Ins. Co.* (1967) 253 Cal.App.2d 807, 819.) Proof on the question of good cause is presented through declarations and counter-declarations. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 389.)

Any motion for protective order “shall be” accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2017.020(a).) Section 2016.040, in turn, requires a supporting meet and confer declaration to “state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.”

“Civil discovery is intended to operate with a minimum of judicial intervention. [I]t is a central precept of the Civil Discovery Act . . . that discovery be essentially self-executing[.] [Citations].” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.) To that end, a motion to compel further responses must attach a meet and confer declaration “showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.310(b), 2031.310(b)(2), 2033.290(b)(1).)

The meet and confer requirement is designed “to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016 [quoting *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435] [internal quotations and citations omitted].) There must be a serious effort at negotiation and informal resolution. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) “[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Ibid.*) The particular level of effort required in each case depends on the

circumstances including the amount of discovery propounded, the time available to confer before the motion filing deadline, and the extent to which a party was complicit in the lapse of available time. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.)

Plaintiffs' Request to Limit Discovery Requests

Plaintiffs request this court limit or strike over 100 discovery requests per plaintiff, including Form Interrogatory Nos. 2.3, 2.4, 2.6, 2.8, 2.13, 4.1, 4.2, 7.1, 7.2, 7.3, 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, 8.8, 10.1, 10.2, 10.3, 11.2; Special interrogatories Nos. 1-8, 11-18, 26-27, 39, 46-49; RFA Nos. 24-29, 41-50; and RFP Nos. 10, 14, 16-21, 25-28, 35-40, 42-49, 52-59, and 61-69. (Mot. at 8:16-9:7.)

On 04/08/2026, Defendant granted Plaintiffs an extension to 04/24/2026 to respond to the written discovery requests. Two days before Plaintiffs' responses were due, Plaintiffs sent their first meet and confer correspondence requesting that Defendant Pali withdraw and/or limit the challenged discovery requests, which account for nearly half of all discovery propounded. (Pauly Decl., Ex. S at p. 5.) Though Plaintiffs ostensibly provided some limited time to respond, Plaintiffs simultaneously represented their *ex parte* application and Motion for Protective Order would be "filed today" (i.e., before the deadline Plaintiffs had provided Defendant to respond). Plaintiffs, in fact, filed the motion a few hours later that same day. Plaintiffs' conduct does not constitute a reasonable or good faith attempt to informally resolve the issues presented in the meet and confer letter—and ultimately, this motion.

To the extent Plaintiffs argue on reply that Defendant Pali was on notice of the relief requested here because Plaintiffs had filed an earlier *ex parte* application on 04/17/2026, Plaintiffs cite no authority providing that a responding party's knowledge of the discovery dispute excuses the moving party from their statutory obligation to meet and confer, and this court is aware of none.

Although not dispositive, the court also notes Plaintiffs did not file a separate statement setting forth the particular discovery requests Plaintiffs argue are outside the scope of discovery and/or are unduly burdensome. (*See* Cal. Rules of Court, Rule 3.1345(a).)

For these reasons, the court DENIES the motion for protective order to the extent Plaintiffs request the court limit or narrow the scope of the discovery propounded.

Private Medical and Personal Information

Plaintiffs request this court permit materials produced under the medical, mental health or diary/journal requests be designated as "Confidential – Attorneys' Eyes only" and used solely in this action.

Plaintiffs did not meaningfully meet and confer on this issue prior to

		filing the motion. Plaintiffs addressed the issue for the first time on 04/22/2026, hours before filing this motion. In addition, Plaintiffs do not show that any private information requested is on par with trade secret information, such that it should be limited to attorneys' eyes only. Because counsel's actions cannot waive the clients' privacy rights, the court DENIES this request <u>without prejudice</u> to the parties' submitting a stipulated protective order pertaining to the treatment and maintenance of confidential information. <u>Extension to Respond</u> Plaintiffs request the court extend to 06/10/2026 the deadline to respond to Defendant Pali's first set of written discovery. The court finds good cause to extend the deadline for Plaintiffs' request, given the number of requests propounded. No later than 09/25/2026, Plaintiff Sandoval and Plaintiff Johnson SHALL provide verified, code-compliant responses to Form Interrogatories (Set One), Special Interrogatories (Set One), RFAs (Set One), and RFPs (Set One) propounded by Defendant Pali. <u>Sanctions</u> Defendant Pali request monetary sanctions against Plaintiffs' counsel Lex Rex Institute, Alexander Haberbusch, and Deborah Pauly in the amount of \$12,000. The court finds the circumstances make the imposition of monetary sanctions unjust and on that basis, DENIES Defendant Pali's request for monetary sanctions. (<i>See</i> Code Civ. Proc., § 2017.020(b).) Plaintiffs to give notice.
7.	LEOS VS. LEE 2023-01326455	MOTION TO REQUIRE PLAINTIFF TO FILE AN UNDERTAKING Defendant Joanna Cloonan's Motion for an Order Requiring Plaintiff Joey Leos to Post an Undertaking is DENIED. The Court notes there is no proof of service attached to Plaintiff's opposition. Plaintiff is reminded to file a proof of service with any supporting or opposing papers. <u>Objections and Request for Judicial Notice</u> Plaintiff's objection to Laskey's Declaration are overruled.